

Government First Threshold Motion to Dismiss Enhancement Target Under Appeal Waiver

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 16 Filed April 22, 2026

The fictional United States, through Bram Ives, moves to dismiss only Mateo Serrano's appellate target challenging the three-level adjustment under U.S.S.G. § 3B1.1(b). The plea agreement validly relinquishes ordinary appeals from the sentence, expressly including statutory review of a Guidelines application. Serrano personally confirmed that scope during the Rule 11 hearing.

This motion does not seek dismissal of the claim that the sentencing court completely failed to provide a personal opportunity to allocute. The agreement expressly excludes that defined claim from the waiver. The government reserves its response on the elements, plain-error analysis, prejudice, and remedy for the merits schedule.

The requested order should be exact: enforce the waiver against the enhancement target, dismiss that target without deciding whether Serrano supervised Alina Pared, and permit the allocution claim to continue. The government does not allege that the notice of appeal was late, does not seek dismissal of the whole appeal, and does not ask the Court to affirm the role finding on its facts.

First Filing Addressing Disposition

This is the government's first substantive filing that asks the Court to dispose of any part of the appeal. Earlier administrative activity was limited to appearance, disclosure, scheduling, and record handling. The government invokes the appeal waiver now, at the first occasion on which it requests a claim-ending ruling.

The invocation is confined to the apparent threshold ground applicable to the enhancement target. The certified notice was filed on March 11, fourteen days after the February 25 judgment, and the government does not contest that chronology. No timeliness dismissal is requested or preserved by implication.

Target-limited treatment is necessary because the plea writing does not waive everything arising at sentencing. It draws a line between ordinary conviction-and-sentence review and one express reservation for complete denial of personal allocution. The government asks the Court to apply that line rather than treating the appeal as an indivisible unit.

Prompt presentation also permits efficient briefing. If the Court grants this motion, later merits submissions can address allocution without disclosing or litigating the protected person-management evidence. If the Court denies it, any further treatment of the role issue can occur under a schedule established by the clerk.

Knowing and Intelligent Agreement

Waiver enforcement is reviewed de novo. Under *United States v. Boutcher*, 998 F.3d 603, 608–09 (4th Cir. 2021), the Court asks whether the government honored the plea agreement, whether the defendant knowingly and intelligently agreed, and whether the appealed issue fits the accepted scope.

The plea transcript satisfies Rule 11(b)(1)(N). Judge Elara Venn addressed Serrano rather than relying on counsel. She explained that the waiver covered appeals from the conviction and sentence, including an ordinary dispute about the advisory role calculation. She then distinguished the separately retained claim concerning a total omission of allocution.

Serrano confirmed both propositions in his own answers. He understood that preserving an objection for sentencing did not itself preserve appellate review. He also understood that the special exception did not encompass every alleged allocution defect or unrelated Guidelines claim. Celia Arden confirmed that she had advised him consistently.

Smith requires examination of the real colloquy and surrounding circumstances when validity is contested. *United States v. Smith*, 134 F.4th 248, 255–61 (4th Cir. 2025). Nothing in this record suggests confusion, coercion, an undisclosed promise, or a guaranteed sentence. The agreement was knowing and intelligent.

Enhancement Target Falls Within Scope

Serrano's role target asserts that the district court erred by adding three levels and using offense level 20 rather than 17. That is a conventional challenge to the application of the Sentencing Guidelines. Section 3742 provides the familiar statutory framework for such review, and the waiver expressly reaches appeals of that kind.

The issue remains ordinary even though it was preserved below and would change the advisory range. Preservation establishes that the district court had an opportunity to rule; it does not undo a later-enforced appellate surrender. The plea agreement did not promise a particular calculation or exempt § 3B1.1(b).

The government's motion requires no protected factual account. The lower court found that Serrano managed Pared for a limited portion of a five-person conspiracy. Serrano disagrees. The contested inference is precisely the sort of case-specific Guidelines application covered by the waiver.

Nor can the role claim borrow the allocution exception. A possible future resentencing after relief on another ground does not convert the present enhancement appeal into a complete-denial claim. The Court should classify and dismiss the target on its own terms while leaving the reserved procedural issue untouched.

Express Reservation Remains Effective

The government agrees that the writing's allocution exception must receive operative effect. Serrano alleges that the district court proceeded from counsel's advocacy to sentence without inviting him personally to speak. That allegation describes the category of claim the exception retains, even though the parties have not completed merits briefing.

United States v. Ashford, 103 F.4th 1052, 1056–57 (4th Cir. 2024), holds that a generic sentencing waiver can encompass allocution. The decision does not require the same result when the parties add an express exclusion. Here the special language distinguishes this agreement from the generic provision considered there.

Recognizing the reservation does not weaken the broad surrender. It demonstrates why enforcement should occur at the level of the target. The Court can dismiss the ordinary Guidelines challenge and retain jurisdiction to decide whether complete denial occurred, whether the absence of an objection matters under plain-error review, and whether Serrano has shown a real possibility of a lower sentence.

The government takes no position on those merits in this motion. Its concession is one of waiver scope only: the complete-denial target is outside the written surrender and remains available for the ordinary adversarial process.

No Breach or Other Bar to Enforcement

Serrano does not allege that the government breached the plea agreement, and the record identifies no breach. The prosecution honored the stipulated offense terms, treated the role issue as open for judicial determination, and accepted the agreement's allocution reservation. It now invokes only the waiver coverage the parties adopted.

The sentence did not exceed a statutory maximum, and the motion does not seek enforcement against a claim attacking the voluntariness of the plea itself. Serrano remains represented by Celia Arden and does not contend that the waiver resulted from ineffective assistance apparent on this record.

The role challenge also does not become unwaivable merely because Serrano invokes Steffen's person-management requirement. Steffen supplies the substantive standard and review framework for a § 3B1.1 dispute; it does not prevent a defendant from relinquishing appellate review of that ordinary sentencing question. 741 F.3d 411, 414–16 (4th Cir. 2013).

Enforcement therefore respects both sides of the bargain. The government obtains dismissal of the covered calculation target. Serrano retains the one procedural claim expressly excluded. No broader equitable exception or adjudication of confidential presentence evidence is needed to reach that result.

Dismissal Without a Merits View

The correct consequence of an enforceable waiver is dismissal of the covered target, not affirmance of the district court's person-management finding. Boutcher's threshold framework prevents unnecessary merits review once validity and scope are established.

Accordingly, the Court need not decide whether repeated requests and follow-up constituted supervision, whether Pared retained sufficient autonomy, or how the preponderance standard applies to the protected record. It should not describe the factual finding as correct or incorrect. Those matters fall outside the ruling requested here.

The distinction has practical importance. A dismissal records only that Serrano surrendered this appellate challenge. It does not dictate how the district court must conduct any later proceeding if the sentence is independently vacated on the reserved allocution ground. At a new sentencing, ordinary Guidelines calculation would remain a district-court responsibility governed by the then-applicable record and law.

The requested order should likewise avoid confidential information. The public record establishes the identity of the adjustment, the five-person predicate, the limited alleged supervisee, the alternative offense levels, and the sentence. Nothing more is needed for target-specific waiver enforcement.

Conclusion and Certification

The government respectfully requests an order holding that Serrano knowingly and intelligently accepted the appeal waiver and that his § 3B1.1(b) enhancement target falls within its broad sentence-review scope. The Court should dismiss that target without expressing any conclusion on whether the district judge correctly found supervision.

The order should also state that the complete-denial-of-allocation claim is not dismissed. That target lies within the agreement's express reservation and remains for merits briefing, including any dispute about plain error, effect on substantial rights, and the appropriate remedy. No other portion of the appeal is addressed by this motion.

Bram Ives certifies that this April 22 filing is the fictional United States' first substantive request for appellate disposition. He serves Celia Arden through the closed synthetic appellate channel. The motion contains no real address, bar number, email account, credential, presentence report, or operational description of the offense.

All parties, records, and identifiers are fictional. The requested relief is limited to Document 16's waiver invocation and does not anticipate any later merits outcome. Maela Cross may record the motion and await the Court's target-specific ruling.